THE STATE
versus
EALLAH CHINODYA
and
BRIAN TONGOWASHA
and
TONGAI CHINODYA

HIGH COURT OF ZIMBABWE
MUREMBA J
HARARE, 27 February; 17 & 25 March 2026

Criminal trial – Sentence

Assessors: Mr Shenje
Mr Mutombwa

Mrs *K Chigwedere*, for the State
L Madhuku, for the first – third accused

MUREMBA J:

Introduction

The offenders are adult males aged 31, 26, and 36 years respectively. They were arraigned before this court on a charge of murder as defined in section 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The allegation was that on 7 October 2022, at Nenyere Flats in Mbare, Harare, the accused persons, acting together with others, unlawfully and with intent to kill, or realising that there was a real risk or possibility that their conduct might cause death and continuing to engage in that conduct despite such risk, assaulted Onisimo Mavhungire with stones, booted feet, open hands, and a wooden log. As a result of the injuries sustained, Onisimo Mavhungire died.

Background

The offenders were convicted of murder by this court and sentenced to 25 years' imprisonment on 20 December 2023. They successfully appealed against conviction to the Supreme Court, which ordered that a fresh judgment be delivered, taking into account the

provisions of section 15 (1) of the Criminal Law (Codification and Reform) Act. This court has complied with that order and has once again found the offenders guilty of murder as defined in section 47(1)(b) in Judgment no. HH 252-26. Since their initial sentencing on 20 December 2023, the offenders have remained in custody for a period of two years and three months.

Plea

All three offenders pleaded not guilty to the charge but were convicted after a contested trial.

Brief Facts

On 7 October 2022, at Nenyere Flats in Mbare, Harare, the deceased, Onisimo Mavhungire, was drinking beer with colleagues near a disputed piece of land. A violent confrontation erupted between CCC members, including the accused persons' mothers, and ZANU PF members who had obtained an eviction order against CCC members. The accused persons were part of the CCC group that confronted the deceased.

During the confrontation, accused three slapped the deceased, who attempted to fight back. This triggered a group assault by more than ten people, including all three offenders. The deceased was attacked with open hands, booted feet, stones, and a wooden log, sustaining severe head injuries. The group left him bleeding and lifeless. He was taken to hospital but died from brain damage and severe head trauma.

Four eyewitnesses positively identified the offenders as participants in the assault. Their identification was deemed reliable as the incident occurred in daylight, at close range, and the witnesses had known the offenders for many years. The offenders raised *alibi* defences, claiming they were elsewhere, but these were rejected as inconsistent and belated. The court found the eyewitness testimony credible and convicted all three offenders of murder.

The Law, Mitigating & Aggravating Factors and the Appropriate Sentence

The penalty for murder is provided for under section 47(4) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. Where the offence is committed in aggravating circumstances, the law prescribes life imprisonment, or a definite term of not less

than 20 years. In cases without aggravating circumstances, the penalty is imprisonment for any definite period.

To achieve uniformity in sentencing, the Sentencing Guidelines contained in S.I. 146 of 2023 provide presumptive penalties for each offence, together with aggravating and mitigating factors that may justify departure from the presumptive penalty. Under these guidelines, the presumptive penalty for murder committed in aggravating circumstances is 20 years' imprisonment, while murder committed in other circumstances carries a presumptive penalty of 15 years. The aggravating factors are listed in section 47(2) and (3) of the Act and in the guidelines, but section 47(5) makes clear that these are not exhaustive. Similarly, mitigating factors listed in the guidelines are not exhaustive.

In the present case, the murder was committed in aggravating circumstances. It was perpetrated by a group of at least ten people acting with common purpose, in defiance of a lawful court order, and involved the use of a weapon — a wooden log used to strike the deceased on the head. Accordingly, the applicable presumptive penalty is 20 years' imprisonment.

Defence counsel did not address the issue of whether this was a murder committed in aggravating or non-aggravating circumstances. He also did not deal with the applicable presumptive penalty in the circumstances of the case. Instead, he proposed a sentence not exceeding eight years, arguing that anything beyond that would be "disturbingly inappropriate" and would crush the lives of the young offenders. He submitted that:

- There was no premeditation; the accused erred only in failing to desist once death became a possibility, which lessened their moral blameworthiness.
- The accused are youthful — aged between 26 and 36 — and a sentence beyond 10 years would destroy their most productive years.
- They have young families who depend on them, and long imprisonment would cause irreparable harm to their dependents.
- They have already spent close to two years in custody, part of which was unlawful incarceration following a conviction later set aside, and the trauma of that experience should weigh in their favour.
- Since three people are being punished for one death, each should not be treated as if solely responsible. Counsel argued that section 196A of the Criminal Law Code

supports a reduced sentence when multiple offenders are punished for a single outcome.

Counsel identified four mitigating factors applicable to all three offenders:

1. They are first offenders.
2. They are youthful.
3. There is little likelihood of re-offending and positive prospects for rehabilitation.
4. They endured inordinate pre-trial detention.

Defence counsel's approach to sentencing is fundamentally flawed because it disregards the clear statutory framework and sentencing guidelines governing murder. Section 47(4) of the Criminal Law (Codification and Reform) Act prescribes that where murder is committed in aggravating circumstances, the minimum penalty is 20 years' imprisonment, with the possibility of life imprisonment. The Sentencing Guidelines in S.I. 146 of 2023 reinforce this by setting a presumptive penalty of 20 years for murder in aggravating circumstances, and 15 years where such circumstances are absent. Counsel's proposal of eight years' imprisonment ignores these binding provisions and fails to engage with the aggravating factors present in this case.

The facts clearly establish aggravating circumstances: the murder was committed by a group of at least ten people acting in common purpose, in defiance of a lawful court order, and involved the use of a weapon — a heavy wooden log used to strike the deceased on the head. These circumstances elevate the seriousness of the offence and demand a sentence aligned with the statutory minimum. Defence counsel's failure to address whether the offence fell within aggravating or non-aggravating circumstances, and his omission to consider the presumptive penalties, demonstrates a misdirection in law.

Furthermore, the argument that youthfulness, family responsibilities, and time spent in custody should reduce the sentence to eight years grossly underestimates the gravity of the offence. While these factors may be relevant in mitigation, they cannot override the statutory framework or diminish the seriousness of a group assault that resulted in death. The submission that "the more people punished, the less each should suffer" is legally untenable, as criminal liability is individual, and each participant in a common purpose bears

responsibility for the fatal outcome. We do not believe that defence counsel correctly invoked s 196A of the Criminal Law Code. The provision reads as follows:

> "196A. **Liability of co-perpetrators**
> (1) If two or more persons are accused of committing a crime in association with each other and the State adduces evidence to show that each of them had the requisite *mens rea* to commit the crime, whether by virtue of having the intention to commit it or the knowledge that it would be committed, or the realisation of a real risk or possibility that a crime of the kind in question would
> be committed, then they may be convicted as co-perpetrators, in which event the conduct of the actual perpetrator (even if none of them is identified as the actual perpetrator) shall be deemed also to be the conduct of every co-perpetrator, whether or not the conduct of the co-perpetrator contributed directly in any way to the commission of the crime by the actual perpetrator.
> (2) The following shall be indicative (but not, in themselves, necessarily decisive) factors tending to prove that two or more persons accused of committing a crime in association with each other together had the requisite mens rea to commit the crime, namely, if they—
> (a) were present at or in the immediate vicinity of the scene of the crime in circumstances which implicate them directly or indirectly in the commission of that crime; or
> (b) were associated together in any conduct that is preparatory to the conduct which resulted in the crime for which they are charged; or
> (c) engaged in any criminal behaviour as a team or group prior to the conduct which resulted in the crime for which they are charged.
> (3) A person charged with being a co-perpetrator of crime may be found guilty of assisting the actual perpetrator of the crime as an accomplice or accessory if such are the facts proved."

What defence counsel meant in invoking this provision is that since three people were convicted for the death of one person, each of them should not be punished as though the death was caused solely by his individual act. Counsel was essentially arguing that responsibility for the loss of life should be "shared" among the offenders, and therefore the punishment for each should be reduced. He invoked this provision which deals with liability in cases of common purpose, to suggest that the more people who are punished for the same death, the less punishment each should receive. On that basis, he proposed that the maximum sentence for each accused should be eight years, reasoning that this would be a fair "*quid pro quo*" since the culpability was collective rather than individual. In short, his argument was that collective responsibility should translate into proportionately lighter sentences for each offender, rather than each being punished as if he alone had caused the death.

The defence counsel was not correct in his interpretation of section 196A. The provision establishes the principle of co-perpetrator liability: when two or more people act together with the requisite *mens rea,* each is deemed to have committed the crime, and the

conduct of the actual perpetrator is attributed to all co-perpetrators. In other words, the law treats each participant as fully responsible for the crime, regardless of whether his individual act directly caused the death. Defence counsel's argument that punishment should be reduced because responsibility is "shared" among several offenders is inconsistent with section 196A. The section does not provide for dilution of liability or a proportional reduction in sentence based on the number of participants. Instead, it ensures that all who act in common purpose are equally liable for the crime committed. The rationale is that collective criminal conduct is just as culpable, if not more dangerous, than individual offending. Therefore, the defence's suggestion that "the more people punished, the less the punishment of each" misrepresents section 196A. The provision does not contemplate a *quid pro quo* reduction in sentence; rather, it ensures that every co-perpetrator bears full criminal responsibility for the offence.

In sum, defence counsel's approach is wrong because it seeks to substitute personal opinion for statutory requirements, ignores the binding presumptive penalties, and trivialises the aggravating circumstances of the offence. The law demands that sentencing for murder reflect both the seriousness of the crime and the need to uphold the integrity of the justice system, which cannot be achieved by imposing a sentence far below the statutory minimum.

In contrast to the defence, the State counsel correctly relied on the statutory framework and sentencing guidelines for murder. She correctly pointed out that section 47(4)(a) of the Criminal Law (Codification and Reform) Act prescribes life imprisonment or a minimum of 20 years where murder is committed in aggravating circumstances. She also properly referenced S.I. 146 of 2023, which sets the presumptive sentence for murder committed in aggravating circumstances at 20 years, and explained that this is the median starting point for sentencing, subject to upward departure if justified. Importantly, she identified aggravating circumstances applicable in this case: the murder was committed by a mob acting in common purpose, in defiance of a lawful court order, and also involved political affiliation as a motivating factor. These aggravating circumstances align with both the Act and the guidelines, making the minimum mandatory sentence of 20 years applicable.

In short, unlike defence counsel who ignored the statutory minimum and presumptive penalties, the State counsel correctly anchored her submissions in the binding sentencing provisions and highlighted the aggravating factors that compel the court to impose a sentence consistent with the law.

The State counsel submitted that the murder was committed in aggravating circumstances and therefore warranted a severe custodial sentence. She emphasized that the deceased was an innocent victim, seated with friends and drinking beer, with no involvement in the land dispute or political affiliations. His death was described as brutal and callous, evidenced by the post-mortem report which showed multiple severe injuries consistent with a prolonged and vicious attack. The counsel stressed the sanctity of life, noting that the law values it highly and only allows its violation in very exceptional circumstances.

The State counsel highlighted the devastating impact of the offence on the victim and his family. She noted that the deceased, Onisimo Mavhungire, lost his life as a result of the brutal attack, and no sentence, not even life imprisonment, could ever bring him back. He is survived by his wife, Grace Muchakata, who provided a victim impact statement detailing the trauma she and her children have suffered from both the death itself and the manner in which it occurred. Grace explained how her life has been negatively transformed. Her standard of living has declined. She struggles to afford adequate meals. She can no longer pay school fees for her child. She has failed to build a home for her family. She even sustained injuries while trying to disembark from the cheapest transport available, underscoring the hardship she now faces. The counsel emphasized that these changes in lifestyle and the emotional devastation experienced by the deceased's family are aggravating factors. She described how Grace cried uncontrollably as she narrated the profound loss and suffering caused by the offenders' actions, urging the court to take these consequences into account in sentencing.

The State counsel argued that punishment must fit both the crime and the offender, while also being fair to the State and society. Given the aggravating circumstances — a mob attack in broad daylight, the use of a weapon, and the fact that the assault only stopped when the deceased was lifeless — she submitted that a life sentence would be most appropriate. However, acknowledging that the accused were first offenders, she proposed a reduced but still severe sentence. She noted that being first offenders carries little weight in mitigation when the crime is serious, and that treating them leniently would risk initiating them into a career of violent crime.

Accordingly, the State prayed that each of the offenders be sentenced to 22 years' imprisonment, arguing that such a sentence would reflect the gravity of the offence, deter similar conduct, and send a clear message to society that the unlawful taking of life will not be tolerated.

The State's proposal of 22 years' imprisonment makes sense when viewed against the background of the initial sentence imposed by this court. At first instance, the offenders were convicted of murder and sentenced to 25 years each. They appealed, and although the conviction was set aside, the Supreme Court directed that a fresh judgment be delivered. The offenders have now been convicted once again of the same offence, under the same factual circumstances, and nothing material has changed to justify a lighter sentence. The aggravating factors remain: the murder was committed by a mob acting in common purpose, in defiance of a lawful court order, and with the use of a weapon, resulting in the brutal death of an innocent man.

In this context, the defence's proposal of eight years is wholly inappropriate and inconsistent with both the statutory framework and the seriousness of the offence. The considerations that led the court to impose 25 years initially are still present, and the offenders' culpability has not diminished. Since they have already served 2 years and 3 months in custody, it is logical and fair that they now serve the remainder of the original sentence. This translates to 22 years and 9 months each. Thus, the State's proposal aligns with the principle of consistency in sentencing, respects the gravity of the offence, and ensures that justice is not trivialized by an unduly lenient penalty.

Accordingly, each offender is sentenced to 22 years and 9 months' imprisonment.

MUREMBA J:……

National Prosecuting Authority, State's legal practitioners
Hamunakwadi & Nyandoro, first to third accused's legal practitioners